

Human Right and Information Technologies

We are in a
perilous
navigation,
since the ICT
revolution

Turner: Dutch Fishing Boats in a Storm



Great opportunities

- Economic development
- Education
- Access to knowledge
- Public dialogue and political participation
- Informed decision
- Health and wellbeing
-



Great risks

- Labour
- Surveillance
- Manipulation
- Discrimination and inequality
-



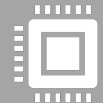
At a crossroad
between
multiple
possible
directions



How to move on?



Hard science: how things are ...



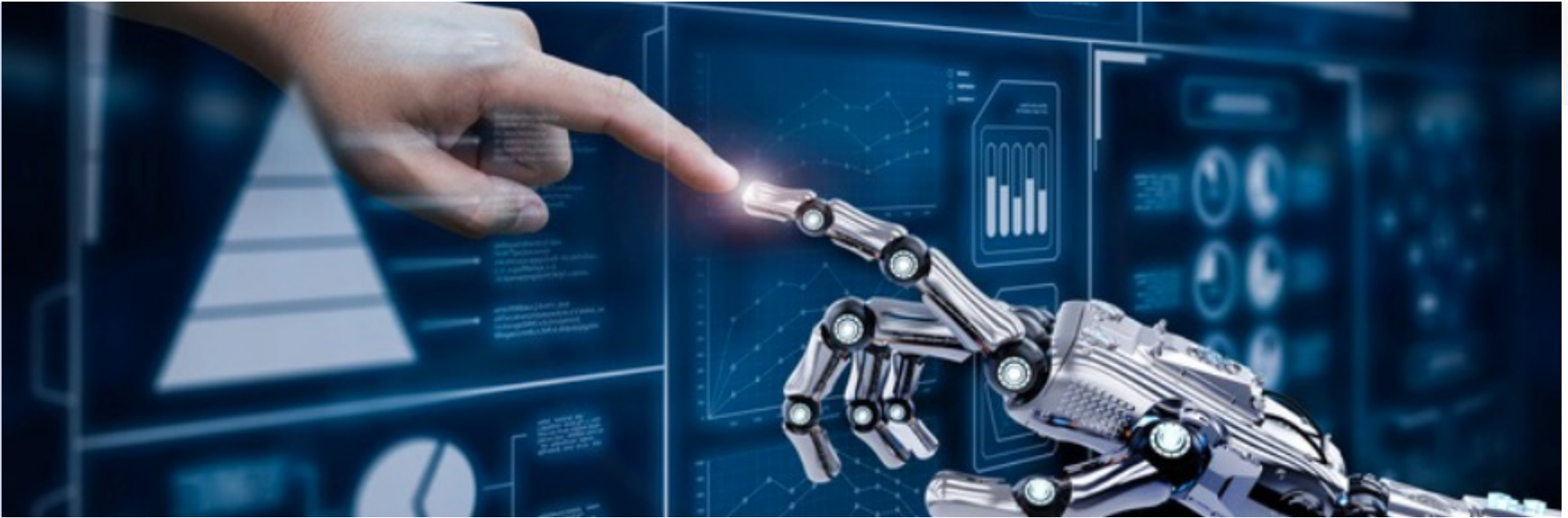
Technology: what is available/possible ...



Social science: what if ...



Normative knowledge: what values, what norms ...



What normative knowledge

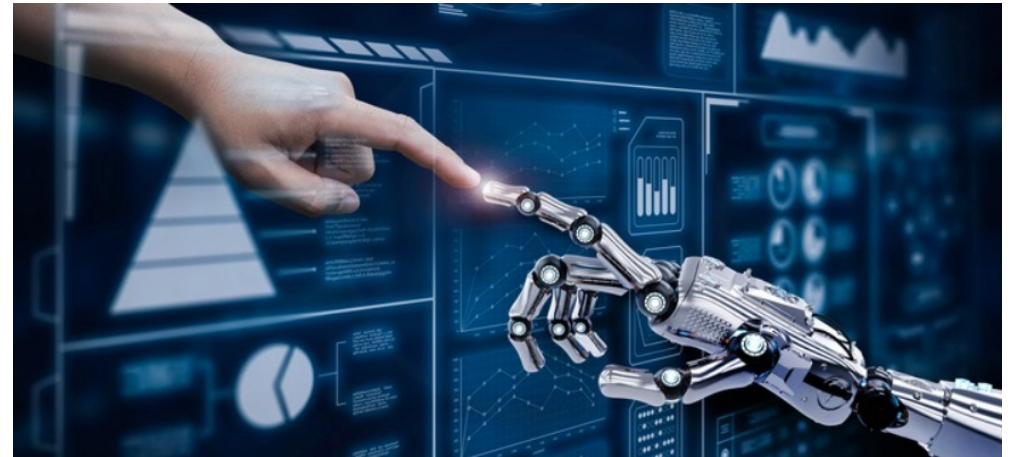
- General ethical theory, theories, computer ethics, machine ethics, AI ethics
- Regulations: data protection, consumer protection, competition law, civil liability, ...
- Human/fundamental rights and social values: the necessary link?

AI4 People

- enabling human self-realisation, without devaluing human abilities;
- enhancing human agency, without removing human responsibility; and
- cultivating social cohesion, without eroding human self-determination.

Trustworthy AI

- Respect for human autonomy
- Prevention of harm
- Fairness
- Explicability



Human rights?



A broad notion of human rights



- Primarily ethical demands (not to be “juridically incarcerated”)
- concerning freedoms (opportunities, including liberty and social rights) satisfying some “threshold conditions” of
 - special importance and
 - social influenceability.
- They may lead to
 - Imperfect duty (obligation to advocate, balance, take into account)
 - Perfect duties
- They may be the object of advocacy, of political debate, and (though not always) legal enforcement

ICT/AI and human rights

- ITCs/AI can
 - interfere with human rights,
 - Contribute to protect/implement human rights
 - Provide for the existence of new human rights or add new content to existing right by
 - endowing a certain human opportunity with importance and
 - enabling society to realise it.
 - E.G.: right to education, right to basic income, right to new medical technologies, etc.
- Not only an endangered legacy
- But also a blueprint for the future

Human/fundamental
rights

As ethical
rights

As political
rights

As legal rights



1. Freedom and dignity

- All human beings are born free and equal in dignity and rights..

Pictures by Yacine Ait Kaci, from UDHU, UN 2015



7. Right to equality and nondiscrimination

- All are equal before the law and are entitled without any discrimination to equal protection of the law.
- All are entitled to equal protection against any discrimination and against any incitement to such discrimination.



12. Right to Privacy

No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honour and reputation. Everyone has the right to the protection of the law against such interference or attacks



3. Right to life, liberty and security

- Everyone has the right to life, liberty and security of person.



Pictures by Yacine Ait Kaci, from UDHU, UN 2015

17. Right to property

- **(1) Everyone has the right to own property alone as well as in association with others.**



20. Freedom of assembly and association

- **(1) Everyone has the right to freedom of peaceful assembly and association.**
- **(2) No one may be compelled to belong to an association.**



8. Right to an effective remedy

- Everyone has the right to an effective remedy by the competent national tribunals for acts violating the fundamental rights granted him by the constitution or by law.



10. Right to a hearing

- Everyone is entitled in full equality to a fair and public hearing by an independent and impartial tribunal, in the determination of his rights and obligations and of any criminal charge against him.



11. Presumption of innocence

- **(1) Everyone charged with a penal offence has the right to be presumed innocent until proved guilty according to law in a public trial at which he has had all the guarantees necessary for his defence.**



19. Freedom of opinion, expression and information

Everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers.



21. Right to take part in government

(1) Everyone has the right to take part in the government of his country, directly or through freely chosen representatives.

(2) Everyone has the right to equal access to public service in his country.



22. Right to social security

Everyone, as a member of society, has the right to social security and is entitled to realization [...] of the economic, social and cultural rights indispensable for his dignity and the free development of his personality.



23. Right to work

- **(1) Everyone has the right to work, to free choice of employment, to just and favourable conditions of work and to protection against unemployment**



25. Right to an adequate standard of living

- **(1) Everyone has the right to a standard of living adequate for the health and well-being of himself and of his family [...] and the right to security in the event of unemployment, sickness, disability, widowhood, old age or other lack of livelihood in circumstances beyond his control.**



26. Right to education

- **(1) Everyone has the right to education. Education shall be free, at least in the elementary and fundamental stages.**



26. Right to culture

- **(1) Everyone has the right freely to participate in the cultural life of the community, to enjoy the arts and to share in scientific advancement and its benefits.**



Conclusion

- Human rights, as we have the ICT revolution are
 - A precious heritage to be protection, but also
 - blueprints for a human centred ict, and in particular human centred AI.

Thank for your attention
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